

Court No. - 39

Case :- WRIT - C No. - 2942 of 2025

Petitioner :- M/S Subodh Gautam Aarya Rice Mile

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anuj Bajpai, Vineet Sankalp

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

On the request of learned counsel for the petitioner, list this case on 11.2.2025 as fresh.

This order was passed in the presence of Sri Gaurav Singh, learned counsel for the respondents.

Order Date :- 4.2.2025

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(Dr. Y. K. Srivastava, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Instructions filed today be kept on record.

2. This writ petition has been filed for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 16.07.2024 of Rs. 13,75,425.00/- + others issued by Executive Engineer Dskhinanchal Vidhyut Vitaran Khand-Attarra District-Banda/ Respondent no.4.

(ii) Issue a writ, order or direction in the nature of mandamus to direct the respondent company to receive the amount of loan in easy installments."

3. Upon taking instructions, Sri Gaurav Singh, learned counsel appearing for the Electricity Department has placed before us the bill dated 06.03.2024. Learned counsel for the Electricity Department further states that the Electricity Department has also temporarily disconnected the electricity connection thereafter. Learned counsel for the petitioner, however, upon going through the bill disputed the same and stated that he desires a rectification.

4. Learned counsel for the Electricity Department has stated that if that is the case the petitioner can always approach the relevant authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

5. Under such circumstances, we are providing that if the petitioner approaches the Electricity Department within a period of ten days from today under Clause 6.5 of the Electricity Supply Code, 2005 and raises an objection to the bill dated 06.03.2024, then the objection shall be decided within a period of one month.

6. For a period of two months, no recovery be done from the petitioner.

7. It may be clarified that we have not decided the case on merits.

8. With these observations, the writ petition stands ***disposed of***.

Order Date :- 27.2.2025

M.S. Ansari

(Dr. Y.K. Srivastava,J.) (Siddhartha Varma,J.)